

2012 WL 686645 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Oscar MCDONALD, Plaintiff,

v.

THE CITY OF NEW YORK, New York City Police Department and Police Officer **Santos Collazo**, Defendants.

No. 0301619-2012.
February 21, 2012.

Summons

[Samuel Katz](#), Attorney for Plaintiff, 315 Madison Avenue, Suite 1306, a/k/a 50 E. 42nd Street, New York, New York 10017, (212) 683-6949.

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiffs attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York February 17, 2012

VERIFIED COMPLAINT

Plaintiff, by his attorney, SAMUEL KATZ, as and for his Verified Complaint, alleges, upon information and belief, as follows:

JURISDICTION

1. That the plaintiff OSCAR McDONALD is a resident of the County of Bronx, City and State of New York.
2. That the defendant the **CITY OF NEW YORK** is a municipal corporation existing under and by virtue of the laws of the State of New York.
3. That the defendant **THE NEW YORK CITY POLICE DEPARTMENT** is a public agency existing under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned **Police Officer Santos Collazo** was and is a member of the New York City Police Department and at all times acted within the scope of his authority as a police officer.

5. That heretofore and on or about the 24th day of May, 2011 and within ninety (90) days after the claim herein sued upon arose, the plaintiff caused a Notice of Claim in writing to be served upon THE CITY OF NEW YORK in full compliance of Section 50E of the General Municipal Law.
6. That at least thirty (30) days have elapsed since the service of said notice of claim as aforesaid and adjustment or payment thereof has been neglected or refused by THE CITY OF NEW YORK.
7. That this action was commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim herein is based.
8. That on February 13, 2012, THE CITY OF NEW YORK conducted a Hearing of the plaintiff pursuant to Section 50h of the General Municipal Law and said Hearing was completed.
9. That the plaintiff has complied with all the provisions of section 50e of the General Municipal Law.
10. That the plaintiff has complied with all the provisions of section 50e of the General Municipal Law and [section 1276 of the Public Authorities Law](#).
11. That at all times hereinafter mentioned, the defendant, its servants, agents and/or employees acted within the scope of their employment and/or authority.
12. That on or about February 28, 2011 at approximately 4:00 p.m. near 190 E. 156th Street, County of Bronx, City and State of New York the plaintiff OSCAR McDONALD was lawfully at said location when he was arrested by the defendants, their servants, agents and/or employees, including, upon information and belief, Police Officer **Santos Collazo**.
13. That plaintiff was charged with a violation of Section 10-133 of the Administrative Code of the City of New York.
14. That as a result plaintiff was imprisoned for a period of approximately three (3) hours.
15. That thereafter all charges against the plaintiff were dismissed.
16. That the defendants, their servants, agents and/or employees, wrongfully, willfully, and maliciously and without any right, warrant, justification, probable cause, or pretense of legal process, imprisoned, arrested and confined plaintiff herein and deprived him of his liberty against his will which conduct constituted a false arrest.
17. That by reason of the foregoing, the plaintiff was deprived of his liberty and was made ill, and injured and was subjected to ridicule, scorn and derision by those known of his detention, suffers from a post traumatic stress disorder, is plagued with nightmares, nervousness and sleep deprivation and otherwise damaged and injured in an amount not to exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

18. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "17" inclusive with the same force and effect as if set forth fully at length herein.
19. That the actions of the defendants, their servants, agents, and/or employees resulted from and were taken pursuant to a de facto policy and/or custom of the defendant, which is implemented by the defendants by negligently and/or inadequately

training it police officers in proper arrest procedures, and it is further implemented by the defendants, their servants, agents and/or employees by allowing and permitting its employees to engage in a stop and frisk policy throughout the City of New York.

20. That the existence of the de facto policy and custom described in the aforementioned paragraph has been known to the supervisory and policy making officers and officials of the City of New York/New York City Police Department for a substantial period of time.

21. That despite their knowledge of said illegal policy and practices, the defendants, the supervisory and policy making officers and officials of the said City of New York/New York City Police Department as a matter of policy have not taken steps to terminate the said practices, have not disciplined or otherwise properly supervised the individual police officers who allowed and engaged in said practices, have not effectively trained the police officers with regard to the proper constitutional and statutory requirements in the exercise of their authority, but have instead sanctioned the policy and practices described in the aforementioned paragraphs, with a deliberate indifference to the effect of said policy and practices upon the constitutional rights of residents and citizens of the State of New York.

22. The defendants, having caused the violation of plaintiffs rights, are liable under [42 U.S.C. Sections 1981 and 1983 et seq.](#) and the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States as well as under the Constitution of the State of New York, to the plaintiff for his injuries.

23. That by reason of the foregoing, the plaintiff was injured as afore-described, all to his damage in an amount not to exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand judgment against the defendants in the First Cause of Action in an amount not to exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction and in the Second Cause of Action in an amount not to exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction all together with the costs and disbursements of this action.

Dated: New York, NY February 17, 2012

Yours, etc.

SAMUEL KATZ

Attorney for Plaintiff

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a/k/a 50 E. 42nd Street

New York, N.Y. 10017

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